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# Chapter 3 - Types of Accommodations

## Guidance

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There are many types of accommodations that USCIS provides for applicants with disabilities.

[\[1\]](#) Accommodations typically relate to the following:

- Naturalization interview;
- Naturalization test; and
- Oath of Allegiance.

Each accommodation may apply to any aspect of the naturalization process as needed, to include any pre-examination procedures.

USCIS recognizes that some applicants may only require one accommodation, while others may need more. Some applicants may need one accommodation at a particular stage of the naturalization process and may require the same or another type of accommodation at a later date.

## A. Accommodations for the Naturalization Examination

Field offices are able to make modifications to provide accommodations during the naturalization examination to applicants with disabilities. The table below serves as a quick reference guide listing common examples of accommodations to the naturalization examination for applicants with disabilities. The paragraphs that follow the table provide further guidance on each accommodation example.

### Accommodations for the Naturalization Examination

| Accommodation                                                                                    | Explanation                                                                                                                              |
|--------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Extending examination time and breaks</b>                                                     | Some applicants with disabilities may need more time than is regularly scheduled for the examination                                     |
| <b>Providing sign language interpreters or other aids for deaf or hard of hearing applicants</b> | Deaf or hard of hearing applicants may need a sign language interpreter, or other accommodation, to complete the examination             |
| <b>Allowing relatives to attend the examination and assist in signing forms</b>                  | Presence of a relative may have a calming effect, and such persons may assist applicants who are unable to sign or make any kind of mark |
| <b>Legal guardian, surrogate, or designated representative at examination</b>                    | Some applicants are unable to undergo an examination because of a physical or developmental disability or mental impairment              |
| <b>Allowing nonverbal communication</b>                                                          | Applicants may be unable to speak sufficiently to respond to questions but may be able to communicate in nonverbal ways                  |
| <b>Off-site examination</b>                                                                      | Some applicants may be unable to appear at the field office because of their disability                                                  |

## 1. Extending Examination Time and Breaks

An officer may provide additional time for the examination and allow breaks if necessary for applicants with disabilities who have requested that type of accommodation. USCIS recognizes that some applicants may need more time than is regularly scheduled.

## 2. Providing Accommodations for Deaf or Hard of Hearing Applicants

In determining what type of auxiliary aid is necessary for deaf or hard of hearing applicants, USCIS gives primary consideration to the requests of the person with a disability.

Unless the applicant chooses to bring his or her own sign language interpreter, the field office must provide a sign language interpreter for a deaf or hard of hearing applicant upon his or her request.<sup>[2]</sup>

The Rehabilitation Act requires USCIS to make an effective accommodation for the person's disability, and USCIS cannot transfer the accommodation burden back to the person. For example, if the person uses the sign language Pidgin English, USCIS must provide an interpreter who uses Pidgin English if one is reasonably available. USCIS cannot tell the person it will provide an American Sign Language (ASL) interpreter and require the person to provide an interpreter to translate between Pidgin English and ASL.<sup>[3]</sup>

The officer should use any communication aids for the deaf or hard of hearing where available, permit the applicant to read lips, and allow the applicant to answer the officer's questions in writing, as needed.

### **3. Allowing Relatives and Others to Attend Examinations and Assist in Signing Forms**

In cases where an applicant has a disability, the officer may allow an applicant's family member, legal guardian, or other person to attend the examination with the applicant. The presence of such a person or persons may help the applicant to remain calm and responsive during the examination. However, if the presence of such person or persons becomes disruptive to the examination, the officer may at any time remove the person from the examination and reschedule the examination if the applicant is unable to proceed at that time.

An officer may allow the person accompanying the applicant to repeat the officer's questions in cases where such repetition facilitates the applicant's responsiveness. An applicant's mark is acceptable as the applicant's signature on the naturalization application or documents relating to the application when an applicant is unable to sign. A family member may assist an applicant to sign, initial, or make a mark when completing the attestation on the naturalization application. Except as provided below, a family member or other person may not sign the naturalization application for the applicant.

### **4. Legal Guardian, Surrogate, or Designated Representative at Examinations**

Currently, all applicants for naturalization are required to appear in person and give testimony under oath as to their eligibility for naturalization.<sup>[4]</sup> When an applicant is unable to undergo an examination because of a physical, developmental disability, or mental impairment, a legal guardian, surrogate, or an eligible designated representative completes the naturalization process for the applicant. USCIS waives the Oath of Allegiance and the legal guardian, surrogate, or designated representative attests to the applicant's eligibility for naturalization. In addition to oath waiver, this process may require accommodations including off-site examinations.<sup>[5]</sup>

Persons eligible to act on behalf of the applicant include:

- A person who a proper court has designated as the applicant's legal guardian or surrogate and who is authorized to exercise legal authority over the applicant's affairs; or
- In the absence of a legal guardian or surrogate, a U.S. citizen, spouse, parent, adult son or daughter, or adult brother or sister who is the primary custodial caregiver and who takes responsibility for the applicant.

USCIS will only recognize one designated representative in the following order of priority:

- Legal guardian or surrogate (highest priority);
- U.S. citizen spouse;
- U.S. citizen parent;
- U.S. citizen adult son or daughter;
- U.S. citizen adult brother or sister (lowest priority).

If there is a priority conflict between the persons seeking to represent the applicant and the persons share the same degree of familial relationship, USCIS gives priority to the party with seniority in age.

The person acting on behalf of the applicant must provide proof of legal guardianship, or documentation to establish the familial relationship, such as a birth certificate, marriage certificate, or adoption decree. In addition, the person must provide documentation to establish that he or she has the primary custodial care and responsibility for the applicant (for example, income tax returns, Social Security Administration documents, and affidavits from other relatives). A spouse, parent, adult son or daughter, or adult brother or sister who is not the legal guardian or surrogate must provide evidence of U.S. citizenship.

## 5. Allowing Nonverbal Communication

An officer may accept forms of nonverbal communication, such as blinking, head shaking or nodding, tapping, or other effective forms of nonverbal communication during the naturalization examination. The officer should also allow the applicant to point to answers on the application and allow the applicant to write out the answers to the civics test if the applicant is not able to communicate verbally. Prior to the start of the naturalization examination, the officer, the applicant, and the applicant's representative (if any) should agree to the form of communication.

## 6. Off-Site Examination

An officer may conduct a naturalization examination in an applicant's home or other residence such as a nursing home, hospice, hospital, or senior citizens center when appropriate.<sup>[6]</sup> This applies to cases where the

applicant’s illness or disability makes it medically unsuitable for him or her to appear at the field office in person.

## B. Accommodations for the Naturalization Test

An applicant with a disability may require an accommodation to take the English and civics tests. The officer should use the appropriate accommodation to meet the applicant’s particular needs. In addition, some applicants with disabilities may qualify for an exception to these requirements for naturalization.<sup>[7]</sup>

The table below serves as a quick reference guide listing common examples of accommodations to the naturalization test for applicants with disabilities. The paragraphs that follow the table provide further guidance on each accommodation.<sup>[8]</sup>

Accommodations for the Naturalization Test

| Accommodation                                            | Explanation                                                                                                                                                 |
|----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Providing reading tests in large print or braille</b> | Applicants who have low vision or are blind or deafblind may need large print or braille in order to be able to read the test.                              |
| <b>Oral writing test</b>                                 | Applicants with physical impairments or with limited use of their hands may be able to complete the writing test orally if they cannot write the sentences. |
| <b>Allowing nonverbal communication</b>                  | Applicants may be able to communicate in nonverbal ways if they cannot respond verbally to questions. <sup>[9]</sup>                                        |
| <b>Providing sign language interpreters</b>              | Deaf or hard of hearing applicants may need a sign language interpreter to complete the tests.                                                              |

### 1. Providing Reading Test in Large Print or Braille

An officer should provide the current reading naturalization test version in large print or braille for applicants who have low vision or are blind or deafblind.<sup>[10]</sup> To request large print or braille-related or other accommodations, applicants should call the USCIS Contact Center at 1-800-375-5283 (TTY: 800-767-1833), use

the [online accommodations request form](#) in order to request an accommodation, or request an accommodation with the field office at any time during the naturalization process.

## 2. Oral Writing Test

An officer should administer the writing portion of the naturalization test orally for applicants with physical impairments, which cause limited or no use of their hands in a way as to preclude the applicant's ability to write. The applicant may satisfy the writing requirements by spelling out the words from the writing test.

## 3. Allowing Nonverbal Communication

An officer may accept forms of nonverbal communication, such as blinking, head shaking or nodding, tapping, or other effective forms of nonverbal communication during the naturalization examination. The officer should also allow the applicant to point to answers on the application and allow the applicant to write out the answers to the civics test if the applicant is not able to communicate verbally. Prior to the start of the naturalization examination, the officer, the applicant, and the applicant's representative (if any) should agree to the form of communication.

## 4. Providing Sign Language Interpreters

In determining what type of accommodation is necessary for deaf or hard of hearing applicants, USCIS gives primary consideration to the requests of the person with a disability.

The field office must provide a sign language interpreter for a deaf or hard of hearing applicant upon his or her request. <sup>[11]</sup> An applicant may bring an interpreter of his or her choosing. To request a sign language interpreter, applicants should call the USCIS Contact Center at 1-800-375-5283 (TTY: 800-767-1833), use the [online accommodations request form](#) in order to request an accommodation, or request an accommodation with the field office at any time during the naturalization process.

The officer should use any communication aids for the deaf or hard of hearing where available, permit the applicant to read lips, and allow the applicant to answer the officer's questions in writing, as needed.

# C. Accommodations for the Oath of Allegiance

A disability or medical impairment may make it difficult for some applicants to take the Oath of Allegiance at the oath ceremony. The table below lists examples of accommodations to the Oath of Allegiance. The paragraphs that follow the table provide further guidance on each accommodation. Some applicants may qualify for a waiver of the Oath of Allegiance. <sup>[12]</sup>

### Accommodations for the Oath of Allegiance

| Accommodation                                      | Explanation                                                                                                        |
|----------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Simplifying language for assent to the oath</b> | Applicants with disabilities may need simpler language to show they assent to the oath                             |
| <b>Expedited scheduling for oath</b>               | Applicants with disabilities may be unable to attend a later ceremony because of their condition                   |
| <b>Providing sign language interpreter at oath</b> | Deaf or hard of hearing applicants may need a sign language interpreter to participate in the ceremony             |
| <b>Off-site administration of oath</b>             | Applicants with disabilities may be unable to attend the court or field office ceremony because of their condition |

## 1. Simplifying Language for Assent to the Oath

An officer may question the applicant about the Oath of Allegiance in a clear, slow manner and in simplified language if the applicant presents difficulty understanding questions regarding the oath. This approach allows the applicant to understand and assent to the Oath of Allegiance and understand that he or she is becoming a U.S. citizen.

## 2. Expedited Scheduling for Oath

A field office should expedite administration of the Oath of Allegiance for an applicant who is unable to attend a ceremony at a later time because of his or her medical impairment. The expedited process may include a ceremony on the same day or an off-site visit.

## 3. Providing Sign Language Interpreter at Oath

A field office should provide a sign language interpreter for an applicant who is deaf or hard of hearing or permit the applicant to use his or her own interpreter during an administrative oath ceremony or for a judicial ceremony where a court is unable to provide a sign language interpreter.

## 4. Off-Site Administration of Oath

A field office should administer the Oath of Allegiance immediately following the off-site examination for an applicant who is unable to attend because of his or her medical condition. Some applicants may have appeared at the field office for the examination, but due to a deteriorating condition are unable to attend the oath ceremony. In such cases, an off-site visit may be scheduled to administer the Oath of Allegiance.

## Footnotes

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[<sup>1</sup>] The lists of accommodations in this chapter are not exhaustive. USCIS determines and provides accommodations on a case-by-case basis.

[<sup>2</sup>] If an applicant qualifies for an exception to the English requirement, the sign language interpreter does not need to sign in English. See Part E, English and Civics Testing and Exceptions, Chapter 2, English and Civics Testing [[12 USCIS-PM E.2](#)].

[<sup>3</sup>] Contact the Registry of Interpreters for the Deaf (RID) at 703-838-0030 (voice), 703-838-0459 (TTY), or use RID's searchable interpreter agency referral database.

[<sup>4</sup>] See [8 CFR 335.2](#).

[<sup>5</sup>] See Part J, Oath of Allegiance [[12 USCIS-PM J](#)].

[<sup>6</sup>] See [INA 335\(b\)](#).

[<sup>7</sup>] See Part E, English and Civics Testing and Exceptions, Chapter 2, English and Civics Testing [[12 USCIS-PM E.2](#)]. See [INA 312\(b\)](#). See [8 CFR 312.1\(b\)](#) and [8 CFR 312.2\(b\)](#).

[<sup>8</sup>] For additional information on how USCIS evaluates each request for a reasonable accommodation, see Volume 1, General Policies and Procedures, Part A, Public Services, Chapter 6, Disability Accommodation Requests, Section C, Requesting Accommodation, Subsection 3, USCIS Review [[1 USCIS-PM A.6\(C\)\(3\)](#)].

[<sup>9</sup>] While the inability to speak is considered a disability under the Rehabilitation Act, the inability to speak in the English language alone (while being able to speak in a foreign language) is not considered a disability under the Act. Therefore, no accommodation is required, and USCIS does not provide accommodations solely on the basis of the requestor being unable to speak English. See [INA 312](#). See [8 CFR 312.1](#). In addition, a request for an interpreter is not approved unless the requestor is otherwise eligible. See [8 CFR 312.4](#).

[<sup>10</sup>] Officers may photocopy the current versions of the test into larger print or increase the font electronically.

[<sup>11</sup>] If an applicant qualifies for an exception to the English requirement, the sign language interpreter does not need to sign in English. See Part E, English and Civics Testing and Exceptions, Chapter 2, English and Civics Testing [[12 USCIS-PM E.2](#)].



[\[^ 12\]](#) See Part J, Oath of Allegiance, Chapter 3, Oath of Allegiance Modifications and Waivers [\[12 USCIS-PM J.3\]](#).

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